

CONFIDENTIALITY AND NONDISCLOSURE AGREEMENT

THIS CONFIDENTIALITY AND NONDISCLOSURE AGREEMENT (the "Agreement") is made and entered into as of the 9th day of October, 2024, by and between Boiler Up, Inc. ("Discloser") and Jackson Cole Ingenito ("Recipient").

WHEREAS, Discloser is willing, subject to the terms and conditions of this Agreement, to disclose Confidential Information (as defined herein) to Recipient for the purpose of discussions between Recipient and Discloser pertaining to a possible business relationship between Recipient and Discloser (the "Discussions") and any business relationship between Recipient and Discloser that develops from the Discussions (a "Relationship").

NOW THEREFORE, in consideration of the mutual promises and covenants contained herein, and other good and valuable consideration, the receipt and sufficiency of which are acknowledged, the parties hereby agree as follows:

1. **Confidential Information.** "Confidential Information" shall mean and include the following, whether or not designated as confidential: (i) oral and written information regarding any operation, process, procedure, inventions, developments, innovation, hardware, software, and code (including, but not limited to source code) developed by or for Discloser; (ii) oral and written information regarding (A) Discloser's customers, including, but not limited to, customer lists and information including names, addresses, services and accounting specifications or (B) any sales, costs, revenues, billings, profits, profit margins, salaries and other financial information pertaining to Discloser; and (iii) oral and written information which is used in Discloser's business and/or is proprietary to, about or created by Discloser, designated as confidential by Discloser, or not generally known by non-Discloser personnel. Confidential Information shall not include: (i) any information which at the time of disclosure is generally available to the public; (ii) information which after disclosure by Discloser becomes generally available to the public, other than through any act or omission by Recipient; or (iii) information rightfully received by Recipient from third parties who did not obtain such information under an obligation of secrecy to Discloser. Without limiting the foregoing, any report that is derived in whole or in part from the Confidential Information, whether such report is developed by Recipient, Discloser, or a third party, shall also be considered "Confidential Information" under this Agreement.

2. **Restrictions.** Recipient recognizes and agrees that the Confidential Information constitutes a valuable, confidential and proprietary asset of Discloser, which is held and maintained by Discloser as a trade secret. Recipient agrees to observe complete confidentiality with regard to the Confidential Information as follows:

(a) Recipient shall not disclose or authorize any person or entity to disclose or use or make known the Confidential Information to any third party and shall not disclose the Confidential Information to any employee of Recipient, except to the extent such a disclosure is necessary for Recipient to carry out the Discussions and any Relationship. As long as the disclosure is consistent with this Agreement, Confidential Information may be disclosed to employees of Recipient but, for avoidance of doubt, Confidential Information may not be disclosed to any third-party independent contractor of Recipient unless such a third-party independent contractor first enters into an agreement with Discloser concerning disclosure and use of the Confidential Information;

(b) Recipient shall not use the Confidential Information for its own benefit or for the benefit of any third party;

(c) Recipient shall not provide the Confidential Information to any third party or permit the use of the Confidential Information by any third party, without the prior written consent of Discloser;

(d) Recipient shall not reproduce or make copies of the Confidential Information or any portions thereof, for any purpose other than the Discussions and any Relationship, and, upon request by Discloser, Recipient shall destroy or immediately return to Discloser the Confidential Information, including all copies thereof, if any, made by or for Recipient;

(e) Recipient shall be liable for all reasonable expenses, including costs and reasonable attorneys' fees, incurred by Discloser in connection with preventing the unauthorized use, disclosure or distribution of the Confidential Information by any person who has gained access to the Confidential Information directly or indirectly from Recipient; and

(f) Recipient shall take all action reasonably necessary to enforce strict adherence to the covenants and conditions set forth herein by any and all personnel and any other employees, officers, directors, representatives or agents of Recipient who may have access to the Confidential Information, and to ensure that all such persons are explicitly informed of the terms of this Agreement.

3. Remedies. Recipient acknowledges that the disclosure or use of the Confidential Information in violation of this Agreement shall give rise to irreparable harm and injury to Discloser, inadequately compensable in monetary damages. Accordingly, Recipient agrees that, in addition to any other legal or equitable remedies that may be available, Discloser shall be entitled to equitable relief, including an injunction and specific performance, in the event of any breach or threatened breach of this Agreement by Recipient. In any action successfully brought by Discloser to enforce its rights hereunder, Discloser shall also be entitled to recover its reasonable attorneys' fees and costs of the action from Recipient.

4. Discloser's Rights. Recipient hereby acknowledges Discloser's ownership of the Confidential Information. Recipient shall do nothing inconsistent with such ownership and Recipient acknowledges and agrees that nothing in this Agreement or in the relationship of Recipient and Discloser gives Recipient any right, title or interest in, or license to, the Confidential Information. Recipient shall disclose in writing to Discloser all work, ideas, inventions, discoveries, processes and improvements, computer programs, specifications, operating instructions, notes, and all other documentation (whether or not patentable) created, conceived, or reduced to practice by Recipient, alone or with others, in connection with the Discussions or the Relationship or which derive from information or materials Recipient has received from Discloser (the "Work Product"). The Work Product shall be the exclusive property of Discloser, and Recipient hereby assigns and conveys to all right, title, and interest in and to the Work Product to Discloser. Recipient shall cooperate with Discloser or its designees and execute documents of assignment, declarations, and other documents that may be prepared by Discloser, and take other necessary actions as reasonably directed by Discloser, to effect the foregoing or to perfect or enforce any proprietary rights resulting from or related to this Agreement. Such cooperation and execution shall be performed without additional compensation to Recipient; provided, however, Discloser shall reimburse Recipient for reasonable out-of-pocket expenses incurred at the specific request of Discloser.

5. Indemnification. Recipient shall indemnify and hold harmless Discloser against, and reimburse Discloser for, any expense, loss, damages, legal fees, or costs arising out of or related to any civil or criminal claims, demands, causes of action, lawsuits, or governmental enforcement actions, whether brought by a third party or asserted by Recipient, arising out of or related to Recipient's actual or alleged acts and omissions (or those of its agents or subcontractors) associated with Recipient's (or its agents' or subcontractors') obligations under this Agreement or their use or disclosure of Confidential Information. Such indemnification shall include, but not be limited to, the payment of all reasonable attorneys' fees associated with any claim, demand, action, cause of action, or lawsuit arising out of or related to such acts or omissions. Recipient shall obtain and maintain at its sole expense, and in amounts consistent with industry standards, insurance to support its indemnification obligation under this Section. A certificate of insurance coverage shall be provided to Discloser upon request.

6. Duration of Agreement. The obligations of Recipient under this Agreement with respect to the use and secrecy of the Confidential Information set forth in this Agreement, shall remain in full force and effect until such Confidential Information becomes generally known to, or readily ascertainable by proper means by, the public and shall survive the termination of this Agreement.

7. Governing Law. This Agreement and all transactions contemplated hereby shall be construed, governed and enforced in accordance with the laws of the State of Indiana, USA, without regard to laws related to choice or conflict of laws that might otherwise refer construction or interpretation of this Agreement to the substantive law of another jurisdiction, and shall be treated in all respects as a contract executed and performed in the State of

Indiana, USA. This Agreement shall supplement, but not displace, the rights and responsibilities set forth in the Indiana Uniform Trade Secrets Act, Ind. Code § 24-2-3-1 et seq., as amended.

8. Severability. Each of the parties acknowledges that the restrictions contained in this Agreement are, under the circumstances, reasonable and necessary to safeguard the goodwill and proprietary and other protectable interests of Discloser. Should these or any other clause, portion, section or paragraph of this Agreement be unenforceable or invalid for any reason, such unenforceability or invalidity shall not affect the enforceability or validity of the remainder of this Agreement. Should any particular provision or restriction including, but not limited to, the covenants and restrictions of Section 2, be held to be unreasonable or unenforceable for any reason, then such covenant or restriction shall be given such effect and enforced to whatever extent would be reasonable and enforceable.

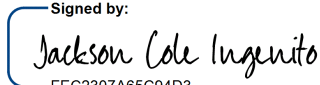
9. Captions. The captions herein are for convenience and identification purposes only, are not integral parts of this Agreement and are not to be considered in the interpretation of any part of this Agreement.

10. Entire Agreement. This Agreement contains the entire agreement of the parties hereto with respect to the subject matter hereof and shall be deemed to supersede all prior and contemporaneous agreements, representations, and understandings where written or oral, and the same shall be deemed to have been merged into this Agreement. The official text of this Agreement is in the English language, and any conflicting interpretations between the English-language text of this Agreement and any translation of this Agreement shall be resolved in favor of the English-language text. All provisions of this Agreement shall be construed and interpreted in the English language as commonly used in the United States of America.

10. Counterparts. This Agreement may be executed in any number of counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Executed signature pages to this Agreement may be delivered by facsimile transmission and any such signature page shall be deemed an original.

IN WITNESS WHEREOF, the parties have duly executed this Agreement as of the date first above written.

RECIPIENT

By:

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 (Signed)
Jackson Cole Ingenito
 (Printed Name)
PMA Agent for Boilermaker Alliance, Inc
 (Title)

BOILER UP, INC.

By:

62A117E1777349A...
 (Signed)
Dave Neff
 (Printed Name)
CEO
 (Title)